

**NATIONAL AGENCY FOR EXAMINATIONS (NAE) NATIONAL EXIT
EXAMINATION FOR STUDENTS OF ETHIOPIAN LAW SCHOOLS
2003- 2015 E.C ACADEMIC YEAR LEGAL ETHICS**

1. The purpose of requiring license to practice law is to
 - A. Ensure compliance of the society with laws and regulations
 - B. Protect advocates from unfair competition
 - C. Protect members of society from crimes
 - D. Ensure provisions of high quality advocacy service
 - E. Maintain effective procedure of issuing advocacy license.

2. If Judge X who is a Federal High Court Judge criticises a lower court judge as "Incapable of being a judge" while reversing judgment containing grave error of fact and law, then Judge X is said to have violated his ethical duty of
 - A. Competence
 - B. Civility
 - C. Accountability
 - D. Confidentiality
 - E. Does not violate any ethical duty

3. Legal malpractice may result from violating advocate's ethical duty of
 - A. Competence and diligence
 - B. Independence and confidentiality
 - C. Independence and propriety
 - D. Impartiality and honesty
 - E. Loyalty and secrecy

4. A sitting-judge who prepares contracts and other legal documents for payments only on weekends:
 - A. Violates Advocates' Code of Conduct
 - B. Commits a crime punishable with imprisonment
 - C. Violates ethical duty of equality
 - D. Exercises his freedom of profession
 - E. None of the above

5. An advocate who causes damage for reckless handling of a client's case may be subject to:
 - A. Payment of damages determined by the Advocates' Disciplinary Council.

- B. Criminal prosecution by the Ministry of Justice.**
- C. Payment of damages determined by the Minister of Justice.**
- D. Payment of fine determined by the Advocates' Disciplinary Council**
- E. Downgrading for violation of an ethical duty.**

6. Which one of the following conduct may result in revocation of advocate's license?

- A. Charging excessive fee.**
- B. Paying fair compensation to individuals for case referrals.**
- C. Accepting cases concerning law of insurance only.**
- D. Practicing before state courts.**
- E. Attending conferences prepared by judges.**

7. Enumerate requirements necessary to obtain federal courts advocacy license.

8. Indicate mechanisms of holding federal court judges accountable under the present Ethiopian legal system.

9. Compare and contrast legal norms and non-legal norms.

10. Which of the following statement is true?

- A. Ethical rules affect independence of judges.**
- B. Judicial Administration Council appoints federal judges.**
- C. Advocates Disciplinary Council consists of one professor of law.**
- D. Justice Organs Professionals Training Centre sets Advocacy Entrance Exam.**
- E. Federal First Instance Court has jurisdiction over disciplinary charges**

11. Which of the following constitutes violation of ethical rules of legal professionals?

- A. An advocate gives presents to his/her client.**
- B. A public prosecutor lends money to his/her colleague.**
- C. A judge impartially decides a case against his/her spouse.**
- D. A public prosecutor drops a charge against a defendant.**
- E. A judge punishes an advocate for contempt of court.**

12. A judge has a responsibility to withdraw from a case in order to respect an ethical duty of

- A. Impartiality**
- B. Confidentiality**
- C. Responsibility**
- D. Accountability**
- E. Equality**

13. Articling is_____

- A. An examination to join the legal profession**
- B. A disciplinary penalty for violation of advocates' Code of Conduct**
- C. An apprenticeship with a practicing lawyer**
- D. A practical training taken before assuming judicial office**

14. Which of the following is correct about the legal norms and non-legal norms?

- A. Both legal and non-legal norms can never help to develop human behaviors.**
- B. Both law and ethics create rights and duties.**
- C. A sanction imposed by positive morality is applied by organized organ.**
- D. Only morals include rules that are necessary for life of the society**

15. Of the following, identify an ethical and legal requirement which is not commonly shared by lawyers, prosecutors and judges.

- A. They should act with impartiality.**
- B. They should act with competence.**
- C. They should act with honesty.**
- D. They should act with sincerity.**
- E. They should act with diligence.**

16. Legal professional privilege is applicable to a communication made by:

- A. A lawyer to his/her client for the purpose of getting and collecting evidence in pending litigation.**
- B. A client to a lawyer for the purpose of engaging in an illegal act and to get advice on how to escape liability.**
- C. A lawyer to his or her client for the purpose of getting or receiving advice in existing or anticipated litigation.**
- D. A client to a lawyer for the purpose of getting or receiving advice in existing or anticipated litigation.**
- E. A litigant to a witness or an arbitrator.**

17. A standard of minimally acceptable conduct within the legal profession which involves the duties that its members owe one another, their client and the court is:

- A. Profession**
- B. Professional ethics**
- C. Legal ethics**
- D. Judicial ethics**
- E. Utilitarianism**

18. As public prosecutors should be loyal to the interests of the government and the public, they:

- A. Are necessarily biased against criminal defendants.**
- B. Are prone to violate fundamental human rights and liberties of individuals.**
- C. Do not deserve independence from the executive organ.**
- D. Should enjoy immunity.**
- E. Should devote their whole energy and ability to providing loyal service to safeguard the interests of the government and the public.**

19. According to Article 12 (5) of Proc. No. 684/2010, “A federal judge who wants to be an advocate after his/her tenure is terminated is legally required not to appear before any bench in a federal court in which he served as a judge representing litigants for a period of two years.” What purpose do you think this provision serve?

- A. To limit the right of judges not to freely' engage in the profession of their own free choice**
- B. To discourage problems of termination of judges from judicial service**
- C. To discourage the rendition of professional services in matters on which he/she participated in substantially**
- D. To discourage the use of his/her reputation as former judge to solicit potential clients**
- E. To discourage other legal professionals from becoming a judge in the future**

20. Mr. Y, a judge in Dire Dawa Federal High Court frequently contacts with Mr. Advocate X, who had been his Law School classmate, in social gatherings. Which one of the following judicial ethics Mr. Y would most likely to have violated?

- A. Independence**
- B. Propriety**
- C. Integrity**
- D. Impartiality**
- E. Loyalty**

21. Which one of the following would be less likely to influence the professional independence of advocates?

- A. Sharing of legal fees with non-lawyers**
- B. Partnership with non-lawyers in non-legal practice**
- C. Sharing of fee with other lawyers who are not partners**
- D. Acting in professional capacity when dealing with professional activities**

E. Contracting with a client for the sale of the latter's property

22. Which of the following is correct about the conduct of a public prosecutor?

- A. Persistent borrowing money from members of the public**
- B. Refusing superior order to ensure his/her professional independence**
- C. Receiving rewards from the public bodies for his/her efficient services**
- D. Disclosure of confidential information in the interest of the public**
- E. Disobeying superiors whose order violates prosecutors' code of conduct**

23. Which one of the following is correct about the regulation of advocates in Ethiopia?

- A. The Federal General Attorney centrally regulates advocates' professional conduct.**
- B. Foreign law firms can provide legal services in Ethiopia through the retention of Ethiopian advocates.**
- C. Professional indemnity insurance is a requirement to acquire advocacy license in federal courts.**
- D. It is legally permissible for an Ethiopian to practice in all levels of states courts with a first level federal advocacy license.**
- E. Ethiopian Lawyers Association prepares examination for advocates.**

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- 27. One of the following is NOT a factor affecting the ethical conduct of judges.**
- A. Extra judicial activities**
 - B. Remuneration**
 - C. Over qualifications**
 - D. Resource of the court**
 - E. Case backlog**
- 28. One of the following is NOT among the grounds which entail liability to a public prosecutor under federal prosecutor's administration regulation.**
- A. Persistent borrowing of money**
 - B. Taking or soliciting bribes**
 - C. Falsification of documents**
 - D. Serving expeditiously**
 - E. Showing negligence at work**
- 29. One of the following is NOT among grounds of public dissatisfaction with legal profession.**
- A. Abuses of adversary system**
 - B. Commercialization of the profession**
 - C. Securing public trust and confidence**

- D. Demanding unfair payments**
- E. Disrespect among advocates**

30. Which among the following is incorrect regarding prohibitions under the Federal Code of Judicial Conduct?

- A. It prohibits ex-parte communication.**
- B. It prohibits judges from discussing the merits of a case pending before a court.**
- C. Judges cannot give any opinion on the case pending before the court to the media.**
- D. Judges can communicate the merit of the case with presiding judges in the same case.**
- E. Judges can communicate the merit of the case with colleague judges in other benches.**

31. Which among the following is a correct statement concerning an advocate's ethical responsibility based on Federal Advocates' Code of Conduct?

- A. He/she should always win a case by whatsoever means.**
- B. He/she should always serve for consideration.**
- C. He/she can present dilatory arguments to a court.**
- D. He/she should participate in community service activities.**
- E. He/she should act detrimental to the justice system**

32. Which one of the following is a correct course of action in legal profession according to the application of rule utilitarianism?

- A. An act of advocate during his/her professional service is right only if it produces the best interest of the client.**

- B. Telling lie before a court of law may be right as long as it is done to protect the best interests his client.**
- C. Any action of the advocate that fails to protect the best interest of his/her client is wrong.**
- D. An action of the advocate is right only if such action is done in conformity with the advocate's code of conduct regulation.**
- E. The rightfulness of any act of the advocate during his/her legal service should be judged based on the greatest balance of happiness over unhappiness it produces to his/her client.**

33. Which one of the following is correct about advocate-client relationships?

- A. The existence of written contract is a mandatory requirement for establishing advocate-client relationship.**
- B. An agreement restricting the civil liability of the advocate due to the client's failure to provide relevant evidence to the advocate could not be valid in case of controversy.**
- C. Advocate-client relationship may be established when a client tells the facts of the case to an advocate.**
- D. The obligation of professional confidentiality of an adveeate may defend himself/herself or claim his/her interests ip h controversy with the client.**
- E. An advocate may disclose confidential information of his/her client unless there exists a clear and written advocacy contract.**

34. One of the following is a judicial misconduct of a judge outside the judicial court.

- A. judge may make an ex parte communication with one of the parties if he/she deems it necessary.**
- B. A judge may discuss about the merits of the pencing case with oth.er judges sitting in the same bench.**
- C. A judge may not communicate the merits of the pending case with other judges in the same court.**
- D. A judge may receive gifts from friends during his birth day celebrations.**
- E. A judge may comment on social media to expresshis/her personal opinions without**

manifesting bias towards certain ethnic groups.

35. One of the following ethical duties is NOT the common ethical and legal duty of advocates judges and public prosecutors in the conduct of their professional legal service?

- A. The duty not to accept gift.**
- B. The duty to uphold the honor of the legal profession.**
- C. The duty not to borrow money from one of the parties in litigation.**
- D. The duty to assist the proper administrator of justice.**
- E. The duty of civility towards each other.**

36. Which one of the following is correct about the public prosecutors' legal duty of obedience?

- A. That a prosecutor all times should exhibit good behavior and conduct within and outside the office in order to win the respect and confidence of the public.**
- B. That a prosecutor shall devote his/her whole energy and ability to providing public service in the interest and for the benefit of the government.**
- C. That a prosecutor shall perform his/her assigned duties by obeying the orders of his/her superior unless it is clearly contrary to the law.**
- D. That a prosecutor shall perform his/her assigned duties to benefit the government by obeying the orders of his/her superior even if it is contrary to the law.**
- E. That a prosecutor shall perform his/her assigned duties by obeying the orders of his/her superior that are contrary to the law since the superior is responsible for the legality of his/her orders.**

37. Which one of the following is proper about ethical duties of public prosecutors under the relevant federal public prosecutors law?

- A. That a public prosecutor may disclose to any person any information gained in the case of his/her official duties if ordered to do so by his/her superior.**
- B. That public prosecutor may disclose any information gained in the case of his/her official duties after personally evaluating the importance of such information.**

- C. That a public prosecutor may supply relevant information about a crime committed which in accordance with practice, has been declared classified matter in debriefing journalists.
- D. That a public prosecutor is at liberty to disclose information to the public acquired in the discharge of his/her duties or in any other way after resignation from his/her public office.
- E. That a public prosecutor may borrow money from a member of the public with whom the prosecutor has a contact in discharge of his/her official duties unless such borrowing is persistent.
38. The act of an advocate to be faithful and understanding towards other advocates under the Federal Advocates Code of Conduct is an act of
- A. legal duty
 - B. ethical duty
 - C. legal and ethical duty
 - D. religious duty
 - E. legal and religious duty
39. Which one of the following is correct under the prevailing regulatory professional code of conduct in Ethiopia?
- A. An advocate is not prohibited to receive donation from his client while providing advocacy services.
 - B. It is not professionally prohibited if a judge provides some money to an indigent client in the proceeding to help him with the cost of written court application.
 - C. It is not a violation of Public Prosecutors Code of Conduct if a public prosecutor provides par-time legal services to a business company with the payment of commensurate fee for his service.
 - D. It is not morally reprehensible if a court legal clerk receives a 'mobile card' in order to facilitate the timely delivery of the paper works of court orders.
 - E. An assistant judge should not be subject to the judicial code of conduct until appointed as a full judge of the court of law.

40. Providing free legal aid services in civil matters to poor members of the community under the prevailing professional code of conduct in Ethiopia is:

- A. the public duty of the public prosecutor.**
- B. the legal duty of licensed advocates.**
- C. the moral duty of any lawyer even if not licensed to practice law in Ethiopia.**
- D. the religious duty of an advocate provided that the person in need of free legal aid has same religious background as the advocate.**
- E. the ethical duty of a judge in the proceedings of the court provided that such person is not represented by an advocate when the other opposing party does.**

41. Tenure is not legally required to produce one of the following under the prevailing professional code of conduct in Ethiopia.

- A. Evidence that such previous judge was not previously convicted of any crimes.**
- B. Evidence that such previous judge is loyal to the supremacy of the law of the land.**
- C. Evidence that such judge has taken exit exam before graduating from a school of law under the new curriculum.**
- D. Evidence that such previous judge graduated in law degree from a recognized higher educational institution,**
- E. Evidence that such previous judge waited for the lapse of two years after termination of his work as a judge.**

42. Which of the following is not a primary characteristic which distinguishes the legal profession from business?

- A. A duty of public service of which emolument is a by-product, and in which one may attain the highest eminence without making much money.**
- B. A relation as officer of the court to the administration of justice involving thorough sincerity, integrity, and reliability.**
- C. A relation to client in the highest degree of fiduciary duty.**
- D. A relation to colleagues characterized by candor and fairness.**

E. A willingness to resort to current business methods of advertising and encroachment on their practice, or dealing directly with their clients.

43. Which one of the following is not correct about how a judge comes to be able to make moral decisions in certain cases?

A. By understanding his/her motives.

B. By understanding the consequences of his/her actions.

C. By being deterred and frightened of the penalties incurred on him/her for his action.

D. By understanding the means adopted to execute action.

E. By appreciating the actions that justifies the result.

44. One of the following statements best describes the major concerns of professional ethics.

A. It is concerned with the study of ethical dilemmas in professions by application of moral theory.

B. It is concerned with the study of unique moral obligations only created by special social roles.

C. It is concerned with the practice and consultancy of ethics by a trained professional ethicist.

D. It is concerned with the ethical challenges of a professional lifestyle.

E. It is concerned with teaching how ordinary human beings should identify rights from wrongs.

45. Which of the following statement is incorrect?

A. Ethical dilemmas arise when it is thought that serious good and bad are bound together in the same activity.

B. Morality uses the instrument of coercion to oblige its subjects.

C. Ethical behavior is dependent on the conditions and circumstances under which an action or event takes place.

D. Codes of conduct form a part of ethical training in every profession.

E. The moral basis of ethical rules may vary from one profession to another.

46. Which of the following statements is most suitable to describe duty ethics?

A. The basic notion is that the right or wrong consideration is what makes the act right or wrong, other things being equal.

B. The basic notion is that an adherence to the codes prescribed under the duty one is employed in makes for the right action.

C. The basic notion is that right and wrong are relative to time and circumstance.

D. The basic notion is that right and wrong are determined by humans according to their subjective conscience.

E. The underlying notion is that right and wrong are absolutely and universally determined for eternity.

47. Which of the following elements is affected most directly and immediately in a case of conflict of interest by a presiding judge?

A. The personal reputation of the judge.

B. The trust that the public holds in the judicial office.

C. The legitimacy of the judicial office.

D. The supremacy of a constitution under which the judge is supposed of function.

E. Respect for the rule of law.

48. Which of the following is not the function of a professional code of ethics?

A. It can express a shared commitment on the part of members of a professional society to strive to satisfy certain ethical standards and principles.

B. It can help foster an environment in which ethical behavior is the norm.

C. It can serve as a guide or reminder in specific circumstances.

- D. It is a code of conduct enacted by professional organizations to self-regulate the behaviors of their members.**
- E. It can serve as a common standard of code of conduct despite differences in professional disciplines.**

49. Which of the following best exhibits an advocate's duty to give the court the respect it deserves?

- A. An advocate constantly appearing in court on time.**
- B. An advocate obeying court orders and procedures.**
- C. An advocate appearing in court dressed in business clothing.**
- D. An advocate addressing the court as 'Your Honor' at all times.**
- E. An advocate who stands up when the judge presides over the trial proceedings.**

50. Which of the following descriptions is not correct about the ethical theory of non-consequentialism?

- A. The theory of non-consequentialism is an evaluation of an ideal type the way world ought to be.**
- B. The theory of non-consequentialism is an evaluation of outcomes or state the way world might be.**
- C. The theory of non-consequentialism is an evaluation of motives of the individual acting.**
- D. The theory of non-consequentialism is an evaluation of the means that an individual acts through.**
- E. The theory of non-consequentialism is an evaluation of the means that justifies the acts of an individual.**

51. Which one of the following schools of ethics describes the view that there is no general

moral principles and that moral disputes, therefore, cannot be resolved?

- A. Ethical relativism**
- B. Ethical nihilism**
- C. Ethical skepticism**
- D. Ethical transcendence**
- E. Ethical imperatives**

52. Which one of the following is not correct about termination of tenure of federal judges under the Federal Judicial Administration Proclamation 1233 of 2021?

- A. A judge's tenure shall terminate at the mandatory retirement age.**
- B. A judge's tenure shall terminate if he/she suffers from serious illness which may affect his/her judicial works.**
- C. A judge's tenure shall terminate when he/she manifests gross incompetence as ascertained by the president of the court.**
- D. A judge's tenure shall terminate for breach of discipline ascertained by the Judicial Administration Council.**
- E. A judge's tenure shall terminate when the judge resigns from the judicial work.**

53. Which one of the following is not true about legal ethics?

- A. The ultimate aim of legal ethics is to preserve the honor and dignity of the legal profession.**
- B. The attainment of honor and dignity of legal profession results in impudence for court and law.**
- C. To escape the destruction of society, legal ethics requires the legal professional to be ethical**
- D. Ethical requirement of the legal profession signifies the public interest of the state and individual citizens.**
- E. It requires the legal professionals to work with civility to enhance the honor and dignity of**

the law profession.

54. One of the following is not an ethical requirement of the relationship between an advocate and a client.

- A. An advocate must be faithful to the requirements of law and his/her/profession.**
- B. An advocate has professional discretion in determining the means by which a matter should be pursued.**
- C. An advocate discharges his/her responsibility towards his/her client in a reasonably well manner.**
- D. Impartiality is essential to the proper discharge of an advocae's professional service.**
- E. An advocate must act in accordance with the rules of the professional conduct, including honor and dignity.**

55. One of the following is the major purpose of the Federal Judicial Administration Proclamation No 1233/2021?

- A. To establish a judiciary that upholds the supremacy of a judge that earns and maintains the trust of the people.**
- B. To ensure that courts exercise their judicial functions free of all internal and external influences.**
- C. To establish a legal framework and procedures that ensures transparency, impartiality and public confidence in all aspects of the process.**
- D. To maintain the personal independence of the members of the judiciary while rendering decision on a specific case.**
- E. To promote equality before the law, due process of law and non-violation of human rights**

56. Which one of the following is correct about the relationship between performing judicial activities?

- A. Impartiality and independence are detachable and dissimilar ethical duties of judges.**
- B. Impartiality is the necessary precondition to independence and is a prerequisite for**

attaining the later.

- C. Independence cannot exist without impartiality but impartiality can exist without independence.
- D. The independence of the judiciary can only be attained through objective impartiality.
- E. One of the manifestations of judicial independence is the function of governing judicial selection and compensation.

57. Impartiality of a judge can best be described, except

- A. It applies not only to the decision itself but also to the process by which the decision is made.
- B. Judges must avoid any action which in the mind of reasonable person would give rise to a reasonable suspicion.
- C. Judges cannot discuss the matter let alone with parties and their advocates even with their close friends and relatives.
- D. Judges should build up ex parte communication with parties or their representatives,
- E. The purpose of ethical requirements of impartiality is to avoid such perception in the members of the courts.

58. Which one of the following is correct about moral issues and moral dilemmas?

- A. Moral issues are issues that raise questions of value about rights, character and welfare of a person
- B. Moral issues do not involve value dilemmas-(moral dilemmas)
- C. Moral dilemmas do not involve situations in which one cannot escape deciding.
- D. Moral dilemmas on questions of value do not directly compare with questions of fact.
- E. Moral issues do not involve important value judgment while answering questions of fact.,

59. The accountability of judges may not include the following.

- A. Judges are required to render decision in public.
 - B. Decision of the lower court judges is reviewed by an appellate court.
 - C. Judges are appointed by the legislature which is accountable to the people.
 - D. The nomination of the judge should consider his skill, personal quality and the like.
 - E. The judicial function of a judge must be secure from internal and external intervention.
60. One of the following is an obligation of an advocate pursuant to the Federal Advocacy Service Licensing and Administration Proclamation No 1249/2021?
- A. Not to terminate the advocacy service contract without good cause.
 - B. Can perform advocacy service using intermediary.
 - C. To perform his/her advocacy service with honesty and being loyal to justice.
 - D. Short term consultancy service contract must be made in a written form.
 - E. To have an office where he/she provides the advocacy service.
61. It is unethical for a lawyer to represent
- A. client whose case such lawyer had decided while the latter was a civil servant
 - B. A client who has killed several people in act of terrorism
 - C. A client who cannot make a decision sustainable before the law
 - D. A client who is unable to pay for advocacy service
62. Where an advocate renders *pro bono publico* service to an indigent as required under Article 49 of Regulations No. 57/1999, such .
- A. advocate treats the indigent as a means.
 - B. advocate treats the indigent as an end.
 - C. indigent treats the advocate as a mere means.
 - D. indigent treats the advocate as a means.
 - E. advocate treats the indigent as a mere means.

63. If a public prosecutor likes to "treat an accused person only in ways that she is willing to be treated in the same exact situation," then she will

- A. Do her level best to obtain acquittal of the accused person.**
- B. Use false evidence to obtain conviction of the accused person.**
- C. Unfairly treat the accused person.**
- D. Receive bribe to obtain conviction of an accused person.**
- E. Prosecute the accused person on the bases of law and evidence**

64. State restrictions attached to the right of every one to choose and practice the law as a profession under Article 41(2) of the FDRE Constitution. Comment on this statement (5 marks)

65 A public prosecutor shall be independent from any influence, be it an institution or an official of legislative or executive branch, and he/she shall adhere only to the law. Comment on the validity or otherwise of this statement? (5 marks)

G-MANs

25/08/2016 E.C